

SHANE HUGHES CONSTRUCTION, INC. VS. BUSH

CASE NUMBER: 23CV-0203722

Tentative Ruling on Motion to Restore Status Quo Ante: Plaintiff Shane Hughes Construction, Inc. moves to stay the matter and return it to the status quo ante as of March 9, 2026. The motion is based on a bankruptcy filing by Defendant Amber Bush. A Notice of Stay of Proceedings (Judicial Council form CM-180) has not been filed. This is a mandatory form. Additionally, the Court has not been provided with any documents related to the bankruptcy case or the bankruptcy case number. While Plaintiff listed Exhibits 1-4 in the moving papers, no exhibits were provided. Without this information, the Court is not able to stay the matter or grant the motion. However, should proper proof be provided, the Court intends to stay the matter as of the date of the bankruptcy filing.

Plaintiff is directed to file a Notice of Stay of Proceedings with a copy of the Notice of Commencement of Case, the bankruptcy petition, or other document showing that the stay is in effect, and showing the court, case number, debtor, and petitioners. Ruling on the motion is **DEFERRED**. The Court intends to rule on the motion when the Notice of Stay of Proceedings has been filed, or on June 15, 2026, whichever is sooner. The matter will be on calendar on **Monday, June 15, 2026 at 9:00 a.m. in Department 63** for status of the case and potential bankruptcy stay. The clerk is directed to vacate the July 6, 2026 review hearing.

WILLIAMS VS. FOUNDATION PHYSICIANS MEDICAL GROUP, ET AL.

CASE NUMBER: 22CV-0201099

Tentative Ruling on Notice of Motion and Motion to Modify Designation of Record Filed by Plaintiff: Defendants, Foundation Physicians Medical Group, Inc., Dignity Health Medical Foundation, Commonspirit Health, and Bradley Walker, seek to modify the designation of record from an appendix to the clerk's transcripts regarding the appeal filed by Plaintiff, Shawni Williams. Plaintiff did not file an opposition.

CRC 8.124 governs the rule regarding the election and use of an appendix in lieu of clerk's transcripts on appeal. CRC 8.124(a)(1) specifically provides,

“Unless the superior court orders otherwise on a motion served and filed within 10 days after the notice of election is served, this rule governs if:

- (A) The appellant elects to use an appendix under this rule in the notice designating the record on appeal under rule 8.121; or
- (B) The respondent serves and files a notice in the superior court electing to use an appendix under this rule within 10 days after the appellant's notice designating the record on appeal is filed and no waiver of the fee for a clerk's transcript is granted to the appellant. If the appellant has a fee waiver, the respondent cannot elect an appendix instead of a clerk's transcript.

Plaintiff filed a Notice of Designation electing to use an appendix on April 3, 2026. The notice was served by electronic service on April 2, 2026. The present motion was filed on April 14, 2026, 12 days after the motion was served. CCP § 1010.6(a)(3) allows electronic service of a document that may be served by mail or fax and provides a two-day extension for any act or response to be made. Here, because the Notice of Designation was served by electronic service, Defendants had 12 days to file the present motion. The motion was timely filed. Plaintiff has not opposed the motion. Defendants have established good cause to support the use of the clerk's transcripts in lieu of an appendix.

The Motion is **GRANTED**. The clerk's transcript shall be provided to the Court of Appeal as record of the documents filed in the superior court pursuant to CRC 8.122. Defendants provided a proposed Order that will be executed by the Court.

9:00 a.m. – Review Hearings

BERG, ET AL. VS. U.S. BANK, ET AL.

CASE NUMBER: 24CV-0206475

This matter is on calendar for review regarding status of arbitration. At the prior hearing on April 27, 2026, the parties were ordered to submit Status Statements at least five court days prior to today's hearing. Defendant has submitted a Status Statement but Plaintiff has not. Defendant's Statement indicates there has been very limited mail correspondence. **The parties are ordered to appear to provide the Court with the status of the arbitration.**

CALIFORNIA CAPITAL INSURANCE COMPANY VS. BROWN

CASE NUMBER: 25CV-0207412

This matter is on calendar for review regarding status of responsive pleadings and trial setting. This matter is not at issue. Cross-Defendants California Capital Insurance Company and Coldwell Banker Property Management have not filed answers to the Cross-Complaint. This issue was previously raised by the Court at the last two hearings. **An appearance is necessary on today's calendar to provide the Court with a status of the pleadings and to provide an explanation for the delay in getting this matter at issue.**

JS MECHANICAL, INC. VS. LAFF, LLC, ET AL.

CASE NUMBER: 25CV-0207114

This matter is on calendar for review regarding status of the Cross-Complaint and trial setting. The Court notes that Cross-Defendant JS Mechanical, Inc. filed an Answer to Laff, LLC's Cross-Complaint on February 2, 2026. However, there is no proof of Service as to Cross-Defendant Jack A. Saunders, Jr. who has not filed a responsive pleading. At the prior review hearing on March 30, 2026, the Court ordered Cross-Complainant Laff, LLC to get the Cross-Complaint at issue prior to today's hearing. Nothing has been filed since the prior hearing date. **An appearance is necessary on today's calendar to provide the Court with a status of service of the Cross-Complaint.**

PLUMAS BANK VS. MENDOZA, ET AL.

CASE NUMBER: 25CVG-01147

This matter is on calendar for status of judgment. Plaintiff's Motion for Judgment on the Pleadings was granted on January 5, 2026. Plaintiff submitted a proposed Clerk's Judgment that was returned by the clerk's office. This matter is continued to **Monday, July 20, 2026, at 9:00 a.m. in Department 63** for review regarding status of judgment. Plaintiff shall submit a Judgment at least five court days prior to the continued hearing date. If a judgment is on file, the review hearing date will be vacated. **No appearance is necessary on today's calendar.**

STEVEN, ET AL. VS. PETERSON

CASE NUMBER: 24CV-0204537

This matter is on calendar for review regarding status of judgment or dismissal. Plaintiffs filed a Status Conference Statement indicating that settlement negotiations through the mediator have stalled. The parties are pursuing discovery and discussion possible arbitrators. In light of the foregoing, this matter is continued to **Monday, October 5, 2026, at 9:00 a.m. in Department 63** for review regarding status of settlement and arbitration. Counsel shall file a Status Statement at least five (5) court days prior to the continued hearing date. **No appearance is necessary on today's calendar.**